

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUMM023093: ALMA DELHIA CABALLERO, et al. vs LILY ANN MALLARE
MD, et al.**

**07/14/2026 in Department 41
Motion for Summary Judgment**

For the purposes of this motion only, as to Defendant's Undisputed Material Facts (UMFs) are:

Undisputed and established by the cited evidence: 1-59.

Defendant Sherif R. Aboseif, M.D. Motion for Summary Judgment Motion is GRANTED. (Code Civ. Proc., § 437c.) Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (Code Civ. Proc., § 437c, subd. (o)(2).)

Defendant contends that he is entitled to summary judgment on the cause of action for medical malpractice on the grounds that he complied with the applicable standard of care at all time, that he did not cause Plaintiffs' injuries and claimed damages, and that Plaintiff Willibaldo Caballero, Jr. cannot establish a derivative cause of action for loss of consortium as Plaintiffs cannot establish a cause of action for medical negligence. Here, Defendant has sustained its burden of proof.

Once the moving Defendant has discharged his burden as to a particular cause of action the Plaintiff may defeat the motion by producing evidence showing that a triable issue of material facts exists as to that cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Here, the Court notes that Plaintiffs do not oppose the motion and in fact filed a notice of non-opposition on May 6, 2026.

Accordingly, this motion for summary judgment is hereby granted.

Defendant to give notice of this Court's ruling.